

workers, one of whom lodged a complaint against the woman who posted the comment. Police not only arrested her, but also detained another woman who had “liked” the original comment. Their alleged crime? Hurting religious sentiments. Read the original Facebook comment and make up your own mind: “People like Thackeray are born and die daily and one should not observe a bandh for that.” Thanks to the judiciary, which swiftly threw out the case against the women, but the conduct of the state and police in dealing with this incident was worrisome to say the least.

No cartoon do: In 2012, a political cartoonist, Aseem Trivedi, was arrested for depicting our country’s national emblem by replacing the four lions with wolves. He also replaced “Satyamev Jayate” (truth alone prevails) to “Bhrashtamev Jayate” (corruption alone prevails). He also drew something that loosely resembled the Indian Parliament building labeled “National Toilet.” His right to free speech and expression was reined in by slapping sedition charges. What does our sedition law say? He who “brings or attempts to bring into hatred or contempt, or excites or attempts to excite disaffection towards, the Government established by law in India” could face life imprisonment. The law was drafted back in 1870 when our country was part of the British Empire. Although Trivedi was released shortly after his arrest, did he draw something far worse than what political commentators pen down in newspaper op-eds on a daily basis or what the disenchanted public feels about the issue of corruption in the country? And when are our sedition laws going to join the rest of us in the 21st century?

Block website = prevent communal violence: Sticking with 2012, which seemed to be a landmark year in impediments to free speech, the government justified its blockade of Twitter handles, specific websites and news portals to prevent tensions from simmering and spread of ethnic violence (through inciteful online messages) in north eastern part of the country. Firstpost.com, Kanchan Gupta (a columnist who doesn’t mince his words when it comes to taking on the government), and several specific anti-government news stories faced online blocks without any intimation, as per the rules of our IT Law. The rulebook was pretty

REPORT: ONLINE FREEDOM IN INDIA

Freedom House is a leading global US-based NGO that does a lot of work in the area of democracy, political freedom, protecting civil liberties and human rights. According to a report from 2014 labeled Freedom on the Net, India has a “Partly Free” status since 2009 as far as preserving the freedom of the Internet goes. You can download the full report (in PDF) here: <https://freedomhouse.org/sites/default/files/resources/India.pdf> but alongside are some of its key insights:

	2013	2014
Press Freedom Status	Partly Free	Partly Free
Internet Freedom Status	Partly Free	Partly Free
Obstacles to Access (0-25)	15	13
Limits on Content (0-35)	12	10
Violations of User Rights (0-40)	20	19
TOTAL* (0-100)	47	42

much thrown out as the government of the day, through the Ministry of Home and Communications and IT, arm-twisted the ISPs into censoring content online.

Fahrenheit 451 = No books allowed: The Center for Internet & Society notes that defamation lawsuits have emerged as a powerful tool recently too squelch voices of dissent emanating from writers and the press, deployed by “individuals and corporations in positions of power and authority, and invariably as a means of silencing criticism.” In one of their reports, they point out how “Hamish

And Ray Bradbury’s prophetic, dystopian future may well be what we are left to inherit very soon.

We must understand that our fundamental right to freedom isn’t absolute. It comes with constitutional checks and balances, and many argue that it’s inevitable in a multi-cultural, multi-religious melting pot that we proudly reflect upon India to be. But it’s incumbent upon the government, law enforcement and judicial system to maintain and preserve the rights of an individual as much as a group of people. And our state machinery needs



Uh oh. We've just reprinted cartoons about politicians... Goodbye cruel world!



MacDonald’s *The Polyester Prince*, a book about the Ambanis, was unavailable in Indian bookshops, because of threats of defamation lawsuits.” Bloomsbury also recently withdrew *The Descent of Air India*, which scrutinized ex-Aviation Minister Praful Patel, after the latter filed a defamation lawsuit. Sahara managed to get a stay order on an investigative book about the conglomerate from a Calcutta High Court judge, who cited only one paragraph from the book. At this rate, we will all have to read fictitious books in the recent future, if they manage to escape any fictitious lawsuits through some fictitious miracle.

to keep up with the advancement of the digital age not just to spy on its citizens but also to understand their sensitivities. Especially, in the age of the Internet, where everyone’s voice or written word has a far greater reach than the era of our founding fathers – where most of our laws feel to emanate from. Instead of being stuck in a time warp, laws need to reflect modern reality; instead of being convoluted and broad-stroked, they need to be straightforward, precise and easily interpreted. Only then can free speech in India stand to have any chance of not just surviving but also flourishing. **d**